

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

June 15, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. via WebEx Electronic Conference Meeting for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy Fakelman, Deputy City Attorney; Robin Lockman, City Treasurer and Chief Greg Hoggatt, Fire and Rescue Department.

Pursuant to Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows, Mayor Orr advised the governing body would be going into executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further explained when the governing body met in executive session, they would be meeting in a private electronic conference, and that Fire Union representatives will meet privately off-line for the purpose of meeting to caucus.

Michael O'Donnell, City Attorney, provided a review and the results as negotiated from the June 11th Special Meeting of the Governing Body for the purpose of Collective Labor Bargaining with Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. David Evans, Attorney representing the Union, confirmed the last offer made by the Union is as follows: add back in 3 Firefighters-\$266,727.00, add back in Longevity pay-\$139,610.00, subtract administrative savings per Chief Hoggatt-\$30,000.00, subtract Fire Administration and Suppression Uniform line items-\$48,650.00, subtract savings due to EOD change 4 not 3 slots (with sunset date)-\$62,000.00, subtract base salaries by 1.5%-\$111,058.00, subtract reduction in force by attrition-\$91,615.00, use reserves (approved by Governing Body on June 10, 2020)-\$57,687.00, and additional needed from reserves-\$5,317.00.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body. Mayor Orr advised that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:07 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 6:23 p.m. Mayor Orr reported the City proposes to accept the modified Union offer with the exception that the EOD slots be reduced from 4 to 3.

Mr. Evans requested a recess for the purpose of going in caucus at 6:26 p.m. Following the Union requested caucus at 7:02 p.m., Mr. Evans advised the Union counter offer is for a proposed 1% pay cut and going to 3 EOD slots from July 1, 2020 to January 1, 2021 and then returning to 4 EOD slots for the remainder of fiscal year 2021.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. White moved to meet in executive session, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. It was clarified that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 7:06 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:39 p.m., Mayor Orr advised the City counter offers with a 1.25% pay cut and 4 EOD slots from July 1, 2020 to January 1, 2021 and then reducing to 3 EOD slots for the remainder of fiscal year 2021.

Mr. Evans requested a recess for purpose of going in caucus at 7:40 p.m. Following the Union requested caucus at 8:07 p.m., Mr. Evans advised the Union’s counter offer is for a 1% pay cut and agrees to the 4 EOD slots from July 1, 2020 to January 1, 2021 and then reducing to 3 EOD slots for the remainder of fiscal year 2021. Mr. Evans reported this would be the Union’s final offer.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Luna moved to meet in executive session, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. It was clarified that in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 8:11 p.m. via electronic conference meeting]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:22 p.m. Mayor Orr advised the City accepts the Union’s final counter offer as follows: add back in 3 Firefighters, add back in Longevity pay, subtract administrative savings per Chief Hoggatt, subtract Fire Administration and Suppression Uniform line items, subtract savings due to EOD change of allowing for 4 slots from July 1, 2020 to January 1, 2021 and then reducing to 3 slots for the remainder of fiscal year 2021 (with sunset date) subtract base salaries by 1%, subtract reduction in force by 3 through attrition, use reserves (approved by Governing Body on June 10, 2020), and the additional needed from reserves. Discussion involved consensus between the City and Union attorneys to craft the appropriate language to reflect the agreed upon changes for the Contract Labor Agreement.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 8:24 p.m.

Submitted by,

A handwritten signature in blue ink, appearing to read "Kristina F. Jones".

Kristina F. Jones
City Clerk

This notice is available in alternative, accessible formats upon request.

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